

Chief Marketing Officer — Executive Proposal

Poveon Health

Document Type: Executive Offer & Equity Participation Agreement (Term Sheet)

Company: Poveon Health

Date: May 4, 2026

Confidentiality: This document is strictly confidential and intended solely for the named recipient.

1. Introduction

Poveon Health is a laboratory test request platform connecting patients, doctors, and partner laboratories through a seamless digital experience. With a growing network of lab partners, an AI-powered health assistant, and a full suite of patient and doctor-facing tools, Poveon Health is positioned for significant market expansion.

In recognition of the importance of strategic marketing leadership at this stage of the company's growth, Poveon Health ("the Company") hereby extends this proposal to appoint a **Chief Marketing Officer (CMO)** on the terms set out below.

2. Position

Field	Details
Title	Chief Marketing Officer (CMO)
Reporting To	Chief Executive Officer (CEO)
Employment Type	Full-Time Executive
Commencement Date	To be agreed upon acceptance

3. Roles and Responsibilities

The CMO shall be responsible for, but not limited to, the following:

- Developing and executing the Company's overall marketing and brand strategy
- Leading all patient, doctor, and laboratory partner acquisition campaigns
- Building and managing the marketing team and external agency relationships
- Overseeing digital marketing, content, SEO/SEM, and social media presence
- Designing go-to-market strategies for new product features and lab partner onboarding
- Establishing and tracking key marketing KPIs (Customer Acquisition Cost, conversion rates, brand awareness, etc.)
- Representing the Company at health tech industry events and media opportunities
- Collaborating closely with the Product and Operations teams to align marketing with platform growth
- Managing the annual marketing budget with full accountability to the CEO and Board

4. Compensation Structure

4.1 Base Salary

The CMO shall receive a mutually agreed base salary, to be negotiated and confirmed in the final Employment Agreement. Salary shall be reviewed annually.

4.2 Equity Ownership — 10% Stake

The CMO shall be granted an equity interest equivalent to **ten percent (10%)** of the total issued and outstanding shares of Poveon Health (or its parent holding entity), subject to the following terms:

Vesting Schedule

To protect both parties and align long-term incentives, the equity shall vest over a **4-year period** with a **1-year cliff**:

Period	Shares Vested
End of Year 1 (Cliff)	25% of total grant
Months 13–48	Remaining 75% vesting monthly (1/36 per month)

- **Acceleration Clause:** In the event of a Company acquisition, merger, or change of control, all unvested shares shall immediately accelerate and fully vest ("single-trigger acceleration").
- **Good Leaver Provision:** If the CMO is terminated without cause, all vested shares shall be retained.

- **Bad Leaver Provision:** If the CMO resigns without notice or is terminated for cause (gross misconduct, fraud, breach of fiduciary duty), unvested shares shall be forfeited.
- **Right of First Refusal:** Before transferring any shares to a third party, the CMO must first offer the Company the right to purchase those shares at fair market value.
- **Share Class:** Equity shall be granted as ordinary shares (or equivalent class), subject to the Company's Articles of Association and any Shareholders' Agreement.
- **Dilution:** The 10% stake is subject to pro-rata dilution in any future equity financing rounds. The Company shall notify the CMO of any new share issuances.

4.3 Profit Sharing — 20% of Net Sales Profit

In addition to base salary and equity, the CMO shall receive a **profit share of twenty percent (20%) of the Company's net profit attributable to sales revenue**, calculated and paid as follows:

Definition of "Net Sales Profit"

"Net Sales Profit" means total revenues received from all sales of Poveon Health services (including platform fees, lab partnership fees, and subscription revenue), less:

- Cost of goods sold / cost of service delivery
- Direct sales-related operational expenses
- Applicable taxes on revenue
- Any revenue-based financing repayments

For the avoidance of doubt, overhead costs (salaries, infrastructure, general administrative expenses) are NOT deducted from Net Sales Profit for the purpose of this calculation. A detailed formula shall be attached as a schedule to the final executed Agreement.

Payment Terms

- Profit share shall be calculated on a **quarterly basis** (ending March 31, June 30, September 30, and December 31 of each year).
- Payment shall be made within **30 days** of the end of each quarter.
- The Company shall provide the CMO with a written profit share statement each quarter, including supporting revenue and cost figures.
- The CMO shall have the right to audit the Company's sales records (with 14 days' written notice) once per financial year, at the CMO's expense, unless the audit reveals an underpayment exceeding 5%, in which case the Company bears the audit cost.

5. Intellectual Property

All marketing materials, brand assets, strategies, content, and creative works developed by the CMO in the course of their duties shall be the sole and exclusive property of Poveon Health. The CMO hereby agrees to assign all such intellectual property rights to the Company upon creation.

6. Confidentiality

The CMO agrees to keep strictly confidential all proprietary information, including but not limited to:

- Business strategies and financial data
- Lab partner agreements and pricing
- Patient and doctor data (in compliance with applicable data protection laws)
- Technology infrastructure and platform details
- Investor and funding information

This obligation survives termination of the CMO's engagement for a period of **3 years**.

7. Non-Compete and Non-Solicitation

During the term of engagement and for a period of **12 months** following termination:

- **Non-Compete:** The CMO shall not directly engage with, invest in, or provide marketing services to any business that directly competes with Poveon Health's core laboratory test request platform within the same geographic markets.
- **Non-Solicitation:** The CMO shall not solicit or recruit any Poveon Health employees, contractors, or lab partners for any competing venture.

The non-compete scope shall be limited to what is reasonable and enforceable under applicable law.

8. Term and Termination

- This arrangement is at-will (or subject to local employment law requirements), with either party able to terminate with **90 days' written notice**.
- The Company may terminate immediately for cause (defined as gross misconduct, fraud, material breach of this Agreement, or criminal conviction).
- Upon termination, the CMO shall return all Company property, devices, and confidential materials within 5 business days.

9. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria (or the jurisdiction of the Company's primary incorporation). Any disputes shall first be resolved through good-faith negotiation between the parties. Failing resolution within 30 days, disputes shall be submitted to binding arbitration under the rules of a mutually agreed arbitration body.

10. Representations and Warranties

Both parties represent that:

- They have full authority to enter into this Agreement.
- Entering into this Agreement does not violate any existing agreement or obligation.
- All information provided during negotiations has been accurate and complete.

11. Amendments

This Agreement may only be amended in writing, signed by both the Company (represented by the CEO or Board) and the CMO.

12. Entire Agreement

This document, together with any schedules and the final Employment Agreement, constitutes the entire agreement between the parties regarding the subject matter herein and supersedes all prior discussions, representations, or understandings.

13. Acceptance

By signing below, both parties agree to the terms and conditions set forth in this proposal and intend to be bound by them upon execution of the final Employment Agreement.

FOR POVEON HEALTH:

Signature

Name

Title: Chief Executive Officer

Date

FOR THE PROPOSED CMO:

Signature

Name

Date

This document is a term sheet / proposal and is subject to the execution of a formal Employment Agreement and Shareholders' Agreement. Parties are strongly advised to seek independent legal counsel before signing any binding agreement.